Master Services Agreement

Dated 29-01-2026

Between

FuturMaster

And

MFM group

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Master Services Agreement

Between:

(1) **FuturMaster Singapore PTE LTD,** a company incorporated in Singapore under registration number **201110630K** with a business address at Fraser Tower 182 Cecil Street, #17-10, Singapore 069547, ("Company"), duly represented by Vincent Berthou as General Manager APAC ("**FuturMaster**" or the "**Supplier**");

and

Malayan Flour Mills Berhad ("MFM"), incorporated under the laws of Malaysia, having its registered office at **Suite 28.01, Level 28, Manara Citibank, 165 Jalan Ampang, 50450 Kuala Lumpur, Malaysia** with company registration number **196101000210.**

Malayan Flour Mills Berhad and **FuturMaster** shall be referred to individually as a "**Party**" and collectively as the "**Parties.**"

Background

(A) FuturMaster markets certain software products and related professional services in several countries.

(B) FuturMaster and the Client have executed a software license and services agreement (the "**Software License Agreement**") in order to define the legal, financial and operational conditions pursuant to which FuturMaster shall grant, to the Client, the right to use FuturMaster Software and shall provide related maintenance and associated services.

(C) The Client wishes to contract with FuturMaster to obtain certain services for the installation of FuturMaster Software as described in the Software License Agreement and FuturMaster has accepted to provide these services and other professional services on the terms and subject to the conditions set forth in this Master Services Agreement.

It is agreed as follows:

1 **Interpretation**

1.1 In addition to the definitions set out in the Software License Agreement or in any Purchase Order and/or Statement of Work, capitalized terms used in this Agreement shall have the meanings set out below. To the extent this Agreement and a Purchase Order and/or Statement of Work include different definitions of the same capitalized term, the definition included below in this document shall prevail.

Acceptance means the acceptance of the Services and/or Deliverables in accordance with the Acceptance procedure and User Acceptance Test described in the applicable Statement of Work;

User Acceptance Test has the meaning stated in the applicable Statement of Work;

Affiliate means any company that, as of Effective Date or subsequent hereto, (i) controls one of the Parties, or (ii) is controlled by one of the Parties, or (iii) is controlled by any company under (i) above. "Control" shall mean to own, either directly or indirectly, more than fifty percent (50 %) of the shares of such company or the majority of voting rights therein. Any company that does not meet the conditions set forth in this definition shall not be deemed to be an Affiliate of one of the Parties;

Agreement means this Master Services Agreement, each Schedule hereto, any Purchase Order, Statement of Work and any other document duly executed by the Parties pursuant to or under the provisions hereunder and any amendments duly executed in accordance with Clause 18.3 to any of the foregoing;

Business Day means any business working day, except a Saturday, Sunday or public holiday in France;

Change Request means a request by FuturMaster or the Client for a change to the Purchase Order and/or Statement of Work;

Change Request Procedure means the procedure specified in Schedule 2 on which a Change Request may be made by the Client;

Charges means the charges specified in Schedule 1 or in the applicable Purchase Order and/or Statement of Work;

Confidential Information means the contents of this Agreement, any information regarding the existence and negotiation of this Agreement between the Parties as well as any information related to either of the Parties that are not known generally to the public, whether it pertains to FuturMaster Software, the Services and/or the Deliverables and their components, a technique, trade secret or other (including, but not limited to, savoir-faire as well as information related to technologies, software, formulas, data, algorithms, specifications or prototypes, clients, business plans, promotional activities, marketing, financing and other commercial information).

Default means any breach of the obligations of either Party (including but not limited to fundamental breach or breach of a fundamental term) or any default, act, omission, negligence or statement of either Party, its employees, agents or sub-contractors in connection with or in relation to the subject matter of this Agreement and in respect of which such Party is liable to the other.

Deliverables means any deliverables provided to the Client by FuturMaster, including the end result of any Service (including but not limited to any tool, documents, reports, training materials, analyses, software, program summaries, program listings, program logic, flow charts, screen designs, file formats, drawings, manuals, installation guides, recommendations, and advice), prepared or issued by FuturMaster and that maybe described in each Purchase Order and/or Statement of Work, and that shall be performed by FuturMaster on behalf of or for the Client;

Documentation means the Specifications of the Deliverables which are to be developed by FuturMaster in accordance with this Agreement;

Effective Date means the date on which this Agreement is executed;

Good Industry Practice means in relation to the Services delivered by FuturMaster, the exercise of that degree of care, diligence and skill which would reasonably and ordinarily be expected from an adequately skilled, professional and experienced services provider engaged in the same type of undertaking under the same or similar circumstances;

Intellectual Property Rights means all intellectual property rights of any kind existing anywhere in the world, whether or not registered and all applications, renewals, and extensions of the same and whenever arising, registered, or applied to be registered including, without limitation, copyright, database rights, design rights, patents, trademarks, service marks, trade names, and other rights in goodwill, rights in know-how, trade secrets, and other confidential information;

Milestone means as regards FuturMaster obligations hereunder to deliver or perform any part of the Services, the relevant date or stage which may be agreed and set out in the applicable Statement of Work;

Purchase Order has the meaning set out in Clauses 3.2 and 3.3;

Services means any professional services purchased in connection with FuturMaster Software procured hereunder and described in the applicable Purchase Order and/or Statement of Work;

Software License Agreement means the software license and services agreement entered into by FuturMaster and the Client on 1st February 2026;

Specifications means the specifications of the Services and/or of the Deliverables to be supplied by FuturMaster and defined in the applicable Statement of Work or Purchase Order.

Statement of Work means a document executed by the Parties pursuant to or under this Agreement (including any schedule or other similar document attached thereto) that describes in detail any Services to be provided by FuturMaster to the Client and/or the Deliverables to be delivered and any other terms or conditions relating to the provision of such Services or Deliverables as agreed by the Parties.

1.2 Clause, Schedule and paragraph headings shall not affect the interpretation of this Agreement.

1.3 The Schedule form part of this Agreement and shall have effect as if set out in full in the body of this Agreement. Any reference to this **Agreement** includes the Schedule.

1.4 References to Clauses and Schedule are to the Clauses and Schedule of this Agreement and references to paragraphs are to paragraphs of the Schedule.

1.5 A **person** includes a natural person, corporate or unincorporated body (whether or not having separate legal personality) and that person's personal representatives, successors and permitted assigns.

1.6 A reference to a **company** shall include any company, corporation or other body corporate, wherever and however incorporated or established.

1.7 Unless the context otherwise requires, words in the singular shall include the plural and in the plural shall include the singular.

1.8 Unless the context otherwise requires, a reference to one gender shall include a reference to the other genders.

1.9 A reference to any **party** shall include that party's personal representatives, successors and permitted assigns.

1.10 A reference to a statute or statutory provision is a reference to it as amended, extended or re-enacted from time to time.

1.11 A reference to a statute or statutory provision shall include all subordinate legislation made from time to time under that statute or statutory provision.

1.12 A reference to **writing** or **written** includes e-mail but not fax.

1.13 Any words following the terms **including**, **include**, **in particular**, **for example** or any similar expression shall be construed as illustrative and shall not limit the sense of the words, description, definition, phrase or term preceding those terms.

2 Purpose

2.1 This Agreement is intended to define the terms and conditions pursuant to which FuturMaster shall perform for the Client the Services or deliver the Deliverables to the Client and/or the Client's Affiliate.

2.2 This Agreement shall not be deemed to constitute a service order in itself nor shall it be deemed to obligate the Client to order any Services or Deliverables from FuturMaster.

2.3 This Agreement shall apply to each Purchase Order and Statement of Work executed during the term hereof, in accordance with the terms and conditions contained herein, in particular, Clause 3 below.

3 Services

3.1 In the event the Client wishes to engage FuturMaster to perform Services, FuturMaster shall submit to the Client a Statement of Work, setting forth certain particulars, including but not limited to, the particular work to be done and Deliverables to be provided to the Client, and any special terms and conditions relating to the provision of such Services or Deliverables as agreed by the Parties such as, if applicable, the period during or within which such Services and/or Deliverables shall be performed and delivered, and the specific arrangement relating to the fees and expenses payable in respect of such Services and/or Deliverables.

3.2 If the Client accepts the Statement of Work submitted by FuturMaster, the Client shall send to FuturMaster a signed version of the Statement of Work. If necessary, the Client shall also issue and send to FuturMaster a Purchase Order by either: (i) physical delivery acknowledged by receipt or delivery notice; (ii) or e-mail with return receipt. A Purchase Order will only contain the following specific terms and conditions : (a) the identification of the Services/Deliverables being procured, (b) price/fees/charges, (c) quantity, and (d) delivery location, and in any event, this Agreement and any Statement of Work issued in connection with such Services and/or Deliverables will control over any inconsistent terms in a Purchase Order in accordance with the order of precedence set out in Clause 3.3.

3.3 In the event of a conflict between the terms and conditions of this Agreement and the terms on or attached to any Purchase Order or Statement of Work, the Parties agree that the following order of precedence shall apply: (i) the general terms and conditions of this Agreement (except in relation to price/fees/charges), (ii) the applicable Statement of Work, (iii) the Purchase Order.

3.4 By exception to the above provisions for Services and/or DelivSGD, the Parties may agree that no Statement of Work will be submitted by FuturMaster and only a Purchase Order will be issued and sent by the Client to FuturMaster.

3.5 No Purchase Order will be deemed accepted by FuturMaster if not signed by FuturMaster.

3.6 All Services and/or Deliverables provided by FuturMaster will be subject to the terms and conditions of this Agreement (regardless of whether a Statement of Work is actually signed, or a Purchase Order issued). It is expressly agreed that all terms and conditions attached by the Client to the Purchase Order or Statement of Work or sent separately to FuturMaster (including any general terms and conditions of purchase) shall not be applicable and shall be void and of no effect.

3.7 Besides the Purchase Order set out in Clauses 3.2 and 3.3, the Statement of Work (if such Statement of Work is issued by FuturMaster) shall be the only other document that may be considered a binding obligation under this Agreement and must specifically make reference hereto.

3.8 Each of the Parties may request by written to make changes, additions, deletions, or modifications to any Statement of Work or Purchase Order in accordance with the Change Request Procedure set out in Schedule 2. If any such change affects the amount due or the time of performance thereunder, the Parties shall negotiate in good faith a mutually acceptable appropriate adjustment to the applicable fees and/or performance due dates in accordance with the Change Request Procedure set out in Schedule 2.

3.9 FuturMaster shall use reasonable endeavors to achieve completion of each phase of the Services by the relevant performance date or Milestone (if defined in the applicable Statement of Work or Purchase Order) but any such dates or Milestone shall be estimates only and time for performance by FuturMaster shall not be of the essence of this Agreement.

4 Acceptance

4.1 Acceptance of the Services and Deliverables shall be deemed to take place upon completion of the Services and where the Deliverables have passed the User Acceptance Test.

4.2 Notwithstanding Clause 4.1, where the Client or the Client's Affiliates uses the Deliverables before Acceptance, except for Acceptance Test purposes, then the Deliverables shall be deemed to have been accepted on the date of first use.

4.3 The Client shall notify FuturMaster of any Services or Deliverables that fail to conform with the terms of this Agreement, the Purchase Order or the Statement of Work and notify FuturMaster of the need for correction of such Services or Deliverables immediately and at the latest within 7 days after completing the User Acceptance Test.

5 Personnel

5.1 FuturMaster shall provide all personnel required to perform the Services in accordance with a Statement of Work and/or Purchase Order, which personnel may in some instances be employees of FuturMaster or FuturMaster Affiliates and in other instances may be independent contractors hired by FuturMaster or FuturMaster Affiliates for the purpose of providing Services pursuant to this Agreement. In either such event, FuturMaster and FuturMaster Affiliate shall be directly responsible and liable to the Client for all acts of such persons including, but not limited to, the completion of the Services to be performed.

5.2 All FuturMaster's personnel or contractors shall have the necessary skills, experience, and training in order to meet FuturMaster's obligations under this Agreement.

5.3 FuturMaster shall be exclusively liable for all the administrative, tax, accounting, and labor-related management of its personnel assigned to perform the Services for the Client and deliver the Deliverables. FuturMaster expressly retains all managerial, organizational, and supervisory control over the personnel it assigns to perform the Services or deliver the Deliverables.

5.4 The Client will furnish FuturMaster's personnel with access at the Client facilities to the systems, equipment, software, premises, and office accommodation to the extent necessary for the supply of the Services by FuturMaster.

6 Obligations of the Client

The Client hereby undertakes:

- to maintain accurate and up-to-date records of the number and location of all copies of the Deliverables and the Documentation;
- to supervise and control the use of the Deliverables and Documentation in accordance with the terms of this Agreement;
- to reproduce and include the copyright notice of FuturMaster on all and any copies, whether in whole or in part, and in any form, including partial copies or modifications; and
- not to copy, translate, adapt, vary, modify, disassemble, decompile or reverse engineer the Deliverables except to the extent and only to the extent to which any of those acts are expressly permitted by the applicable laws.

7 Charges and Payment

7.1 The Charges shall be calculated on a time and materials basis at the rates set out in Schedule 1 or as amended by FuturMaster from time to time or at the specific price / fee agreed in the applicable Statement of Work or Purchase Order.

7.2 The Client shall pay the Charges to FuturMaster within 30 days of issuance of FuturMaster invoice.

7.3 If Client fails to make any payment due to FuturMaster under this Agreement by the due date for payment, then, without prejudice to any other remedies available to FuturMaster under this Agreement, FuturMaster shall automatically apply late payment interest in an amount equal Singapore SORA rate plus 1% percentage points to any invoiced amounts that are overdue (example: currently SORA at 1.77% +1% = 2.77%). . Late payment interests shall accrue on a daily basis on such due amounts and at such rate commencing on the due date and continuing until fully paid, whether before or after judgment.

In the event of non-payment of all the amounts due under this Agreement, and provided that FuturMaster has given the Client at least 30 days prior notice that its account is overdue then without prejudice to any other rights and remedies of FuturMaster, FuturMaster may at its discretion, without any indemnity or liability to the Client, suspend the supply of any Services and/or terminate this Agreement.

7.4 The Charges and sums payable under this Agreement are exclusive of any applicable tax and the Client shall pay all applicable taxes on all those sums at the rate and in the manner prescribed by law from time to time.

8 **Warranties**

8.1 FuturMaster warrants and represents that:

(a) the Services shall be performed in a timely and professional manner by qualified personnel;

(b) subject always to Clause 8.2, Clause 8.3 and Clause 8.4 below, the Services and the Deliverables shall conform to the Specifications in all material respects as well as to the standards and Good Industry Practice for similar Services and Deliverables; and

(c) the Deliverables will function in the manner set forth in the Specifications for a term of sixty (60) days beginning on the date of User Acceptance Test (the Warranty Period).

8.2 The Client acknowledges and accepts that computer programs are not error-free and agrees that the existence of errors in the Deliverables shall not constitute a breach of this Agreement.

8.3 In the event that the Client discovers that the Services and/or Deliverables do not comply with Clause 8.1 of this Agreement, and such non-compliance substantially affects the use of the Deliverables in accordance with this Agreement, the Client shall promptly notify FuturMaster following Acceptance of the Services and/or Deliverables concerned.

FuturMaster shall at its sole option either refund any sum paid by the Client pursuant to Clause 8.1 for the portion of the Services and/or Deliverables which are not compliant or use all reasonable endeavors to correct or replace such non-compliant Services or Deliverables, provided that the Client (i) has notified FuturMaster of the non-compliance/defect, during the Warranty Period, (ii) has not performed any modifications, variation, or addition to the Deliverables through the use of any company other than FuturMaster or the non-compliance/defect is caused by the incorrect use, abuse or corruption of the Deliverables or by use of the Deliverables with hardware other than the hardware or other equipment specified in the Specifications (if any). In order for FuturMaster to be able to make the necessary corrections, the Client shall provide it with a description and all information necessary to identify such non-compliance/defect.

8.4 Except as expressly stated in this Agreement, to the extent permitted by law, no any other warranties are provided by FuturMaster.

9 **Liability**

9.1 FuturMaster warrants that it shall use reasonable skill and care (*obligations de moyen*) in performing its obligations under this Agreement. FuturMaster shall also perform its obligations in a professional manner in accordance with accepted industry practices and standards.

9.2 FuturMaster shall only be held liable for direct and foreseeable losses or damages suffered by the Client and/or any of its Affiliates as a result of a fault caused by FuturMaster during the performance of this Agreement. FuturMaster shall not in any circumstances have any liability for any indirect losses or damages which may be suffered by the Client (or any person claiming under or through the Client, including its Affiliates), and whether the same arise in contract, tort (including negligence) or otherwise howsoever, which fall within any of the following categories: any financial or economic loss, loss of profit, loss of use, loss of orders, sales or production, loss of goodwill, loss of reputation, anticipated savings, loss or corruption of data and files; the cost of replacement products, software, services or

technologies, or any action taken against the Client and/or any of its Affiliates by any third party.

The Client undertakes to take all measures and actions to mitigate its losses and damages. The Client shall be responsible for saving and backing-up all Client data in order prevent the loss or damage thereto and shall verify that back-ups operations take place at regular intervals.

9.3 Subject always to Clause 9.5, the total aggregate liability under this Agreement of either Party for each event or Default or series of related events of Default shall be limited to damages which shall not exceed the total Charges payable under this Agreement provided always that in any period of twelve (12) consecutive months the maximum liability of each Party to the other for Defaults governed by this Clause 9.3 shall not exceed two hundred and fifty thousand (250 000) SGD or project estimated value whichever is higher.

9.4 Nothing in this Agreement shall limit or exclude a Party's liability for (i) death or personal injury arising from its negligence or that of its employees, agents or subcontractors or (ii) fraud, theft or willful misconduct.

9.5 Subject always to Clause 9.5, the liability of FuturMaster for any fault under or in connection with this Agreement, whether arising from negligence, breach of contract or all other torts shall be as set out in Clause 9.3. To the extent permitted by law, FuturMaster shall have no liability to the Client under this Agreement (including any Purchase Order and/or any Statement of Work) other than as expressly set out in this Agreement and Clause 9.3 sets out the entire financial liability of FuturMaster (including any liability for the acts or omissions of its Personnel, agents and sub-contractors), except the financial liability resulting from applicable mandatory legal provisions.

9.6 The Parties expressly agree that should any limitation or provision contained in Clause 9.1, 9.2, and 9.3 be held to be invalid under any applicable law, it shall to that extent be deemed omitted, but if any Party thereby becomes liable for loss or damage which would otherwise have been limited, such liability shall be subject to the other limitations and provisions set out herein.

9.7 Accordingly, the Client expressly agrees that the exclusion and limitation of liability clauses set out in this Agreement:

(a) reflect the commercial terms agreed between the parties;

(b) shall extend to benefit those members of the group companies of the Supplier which provide any Services from time to time; and

(c) are reasonable and are accepted by it after careful consideration.

9.8 To the extent permitted by law, all legal proceedings that are brought against the Supplier by the Client under or in connection with this Agreement shall be commenced within twelve (12) months of the Client becoming aware of the matters to which the legal claim in question relates, but nothing in this clause shall have the effect of extending the limitation period during which any legal proceedings may be brought.

10 Force Majeure

The obligations attached to one or the other Party under this Agreement shall be suspended and without formality, and its liability waived, in the case of one of the force majeure cases impeding normal performance of its obligations. It is specified that force majeure cases are all compelling events, as well as, without being exhaustive, the following cases:, fire, flood, riots, public disorder, weather events, injunction or restriction by a government entity, war as well as failure and/or blockage of telecommunications

or information or electricity networks.

The Party acknowledging the event shall, without delay, notify the other Party about its impossibility to perform its service and provide justification thereof. The suspension of obligations shall not in any case be a cause for liability for failure to perform an obligation, nor be cause for payment for damages or late penalties.

However, once the cause for suspension of reciprocal obligations has disappeared, the Parties shall make their best endeavors in order to continue normal performance of their contractual obligations as quickly as possible. As such, the impeded Party shall notify the other in regards to restarting performance of its obligation via certified letter with return receipt.

It is expressly agreed that the Parties may terminate this Agreement, if the event, defined as a hypothesis for suspending obligations, continues for a period of more than one (1) month. However, this termination shall be possible only eight (8) days after receiving notice by certified letter with return receipt. The Agreement shall therefore be terminated without damages for either party.

11 Term

This Agreement shall commence on the Effective Date and continue to be effective unless terminated by either Party in accordance with this Agreement.

12 Termination

12.1 Each Party may, in the following cases, rightfully terminate the Agreement:

- in case of a material breach by the other Party of any of its essential obligations under the Agreement and within thirty (30) days from being provided a notice thereof, which goes without response, when it is likely that the breach can be cured, or immediately in the contrary case;
- in case of bankruptcy, a liquidation ordered by a court against the other Party or analogous or similar procedure applicable to the other Party at a later date or in any other country.

12.2 In each of these cases, upon termination, each Party shall return to the other Party all elements in its possession belonging to the other and shall take any necessary measures in order to destroy any copy, except for a single archive copy necessary for responding to its legal tax and accounting obligations, such copy being used exclusive for this purpose.

12.3 Upon termination of the use right, or on the effective termination date, the Client agrees to stop using the Deliverables and affirm in writing this discontinuation to FuturMaster; the Client also agrees to erase/destroy/delete any copy of the Deliverables and/or Documentation at the contractual end date or at the effective termination date or return it to FuturMaster in their entirety. Any use, even partial, of the Deliverables and/or Documentation after the contractual end date or at the effective termination date will constitute an infringement of FuturMaster's rights, likely to cause civil and/or criminal legal action.

12.4 Forthwith upon completion of the activities set out in Clause 12.2 and Clause 12.3 above, the Client shall certify in writing to FuturMaster that it has fully complied with the requirements of Clause 12.2 and Clause 12.3.

12.5 The termination of this Agreement shall not prejudice or affect any right of action or remedy which shall have accrued or shall thereafter accrue to either Party.

12.6 The provisions of Clause 1, 4, 7, 8, 9, 12, 13, 16, 17, 18.1, and 18.7 shall survive the termination or expiry of this Agreement.

13 **Intellectual Property Rights**

13.1 The Agreement shall not include the transfer of any intellectual property rights to the Client. The Deliverables and any product resulting from the Services provided by FuturMaster in the framework of the performance of the Agreement shall remain the property of FuturMaster or any third-party publisher, as the case may be. As a consequence, the Client accepts and acknowledges that FuturMaster is the owner of the rights in any copy, translation, modification, adaptation or application of the Deliverables that may be created by FuturMaster or the Client, including any improvements of developments concerning FuturMaster Software or Deliverables.

13.2 If a Client representative, employee or consultant is assumed to be the owner of the rights set forth above, as the author, the Client shall take all necessary measures to ensure that such person transfer all such rights to FuturMaster or third-party publishers. If, due to applicable law or regulation, such rights may not be transferred, the Client shall take all necessary measures to ensure that such person waives its rights therein or if such waiver is not legal, that such person grants exclusively and irrevocably, such rights to FuturMaster or third party publishers, for free and for an unlimited term on a worldwide basis in order to use, market and modify the elements without having to identify the author or obtain its prior consent. Upon FuturMaster's request, the Client shall take all necessary measures to execute a written agreement with the author memorializing FuturMaster's or the third-party publisher's rights provided for under this Clause.

13.3 The Client undertakes not to directly or indirectly, through any intermediary, violate the intellectual property rights of FuturMaster or relevant third-party publisher. With regards to its employees and/or any third party that legitimately had access to FuturMaster Deliverables subsequent to FuturMaster giving its authorization, the Client shall take all measures necessary to ensure that FuturMaster's or the relevant third-party publisher's intellectual property rights are respected. Moreover, the Client shall not delete or modify the ownership notices on the Documentation and undertakes to reproduce and place such notices on any complete or partial copy of the Deliverables or Documentation that it produces.

FuturMaster shall hold the Client harmless for against any legal action based on the Client's use of the Deliverables pursuant to the Agreement over the Territory which violates any third-party intellectual property rights.

This warranty is hereby granted by FuturMaster provided that:

- FuturMaster be immediately notified of any claims or legal action brought by any third-party claiming infringement of its rights by the Deliverables (a "**Third Party**");
- FuturMaster be able to mount its defense of the Client at its sole discretion, against any threatened action, complaint or claim; and
- The Client provide assistance and allow FuturMaster to take sole control of any negotiations with the Third Party in order to execute a settlement.

The Client shall not respond alone to any claim, complaint or legal action and/or defend itself alone in any judicial action or litigation brought against it by a Third Party or discuss or execute any agreement or settlement with a Third Party and undertakes, if it is named as a defendant, to immediately notify FuturMaster and collaborate with FuturMaster in accordance with this Clause.

Upon receiving notification of any claim, complaint or legal action brought by any Third Party, FuturMaster may, subject to the terms and conditions set forth above, at its sole discretion and expense:

- Either modify the Deliverable so that it no longer infringes while maintaining similar features,
- Either obtain the right to continue to use the alleged infringing Deliverable on behalf of the Client,
- Either provide the Client with software with substantially similar features and performance parameters,
- Request that the Client return the infringing Deliverable, and anything associated therewith. Upon the return of such, the Client may recover damages from FuturMaster in the amount of the services fees paid by the Client to FuturMaster for the use of the Deliverable.

In the event of a settlement for which an amount is agreed upon by FuturMaster and the Third Party, FuturMaster shall pay the entirety of the amounts to be paid by the Client to the Third Party.

This warranty against dispossession granted by FuturMaster shall not apply to a Deliverable:

- That was modified, after it has been delivered by FuturMaster and by a third-party service provider;
- That is used in conjunction with third-party software, materials or operating systems other than those as set out in the Software License Agreement, if the infringement pertains to such combined use;
- That is still being used by the Client in spite of a settlement agreement having been executed or after a definitive legal judgment has been rendered or if the Client fails to implement the modifications suggested by FuturMaster which would lead such to no longer being considered as infringing;
- That is used by the Client and the infringement arises out of a failure of the Client to strictly comply with the provisions set forth in the Agreement.

In the event that any infringement is imputable to the Client and that a judgment has been rendered against FuturMaster with respect thereto, the Client shall indemnify FuturMaster for the entirety of the financial consequences incurred by FuturMaster in relation to such and, more specifically, the Client shall indemnify and hold FuturMaster harmless for any damages, as well as reasonable expenses, court costs, associated fees, and legal fees.

14 Cooperation

Each of the Parties shall cooperate with one another in an active, continuous manner with regards to the performance of their obligations under the Agreement. FuturMaster's delivery of the Services and Deliverables depends on the Client's performance of its contractual obligations. The Client must clearly express its needs and constraints in order to properly install the Deliverables in accordance with the Agreement and this obligation shall be considered a material aspect hereof.

15 Contract Management - Governance

Management of this Agreement and governance of the Services will be carried out by the officers and committees set out below, whose roles and responsibilities are described below and in the applicable Statement of Work.

15.1 Contract/Project Officers

(a) The Parties agree to appoint and to keep appointed, a Contract Manager and to procure that they, together with any other representative as required, will meet regularly, either by telephone or in person, not less than once in every three months, unless otherwise agreed between the Parties to:

(i) review and set in hand any action and decision as necessary with regard to operational or financial issues and other matters relating to the provision of the Services under this Agreement, and

(ii) work together to monitor and maintain the relationship and promptly set in hand actions needed to resolve, as required from time to time, any issues that arise in relation to the good management of the Supplier's obligations under this Agreement.

The Contract Managers of each of the Parties are identified in the Statement of Work. Each of the Parties will be entitled to modify their Contract Manager on a discretionary basis. Any modification by either party of its Contract Manager shall be notified promptly to the other Party.

(b) The Project Manager representing the Supplier and the Client will be responsible for the follow-up of the provision of the Services and the monitoring of the delivery of the Services on a day-to-day basis. Project Managers will report to their respective Contract Manager. They may meet weekly to discuss day-to-day operations and such other matters as appropriate and will attend the meetings of the Project Committee.

The Project Managers of each of the Parties are identified in the Statement of Work. Each of the Parties will be entitled to modify their Project Manager on a discretionary basis. Any modification by either party of its Project Manager shall be notified promptly to the other Party.

15.2 Contract/Project Committees

(a) The Project Committee will meet not less than once every two weeks to monitor the level of delivery of the Services. The Project Committee will discuss the performance of the Services during the previous weeks, planned or anticipated activities, and changes that might adversely affect performance of the Services, including a Change Request. The Project Committee may review and make proposals in order to improve the delivery of the Services. The Project Committee shall be composed of the Project Managers, and representatives of the Supplier and the Client.

(b) The Steering Committee will meet not less than once in every three months to review the Performance Report for the last quarter, review progress on the resolution of issues, take decisions in relation to all operational issues. The Steering Committee shall be composed of the Contract Managers, Project Managers, and representatives of the Supplier and the Client, and such other persons as may be designated by the Supplier or the Client.

The meetings of the Project Committee and the Steering Committee will be convened and take place in accordance with the rules defined in the applicable Statement of Work. The minutes of all meetings will have to be prepared and approved in accordance with the project management rules defined in the applicable Statement of Work.

15.3 Compulsory and regular information and reporting

Each Party undertakes that there will be appropriate liaison between staff engaged in the performance of the Parties' obligations under this Agreement and that their respective Service Managers are always mutually informed.

The Parties shall establish a Quarterly Performance Report, which shall be delivered to the Steering Committee fifteen days before the end of each quarter. Such Quarterly Performance Report shall be prepared in accordance with the format that will be agreed by the Supplier and the Client.

16 Confidentiality

The Parties (i) hereby commit to take all measures necessary in order to ensure the strictest confidentiality of all the Confidential Information and (ii) agree that any Confidential Information received from the other Party shall only be used strictly as necessary for the performance of the Agreement. This obligation shall not be applicable insofar as the Confidential Information:

- are generally available to the public or become available to the public by any means other than the violation of this Article;
- are obtained by third parties not under an obligation of confidentiality with regards to the information;
- are or have been developed independently by the receiving Party or were known by such before having received such information.

Each Party shall have the right to disclose the Confidential Information pursuant to a court judgment or as required by a public entity or governmental authority. In such case the receiving Party shall immediately notify the disclosing Party with respect to such Confidential Information and shall, insofar as such is possible, limit the scope of the disclosure or to stop the information from being disclosed to the public. Any delay or failure to act by the disclosing Party shall be deemed as a waiver of this right or as a waiver of the right to make any future claim for breach of contract in connection to the Agreement.

Each Party must, upon first request or, at the latest, upon the termination of the Agreement, return all of the Confidential Information pertaining to the other Party to it as well as all copies, whether complete or partial, that are in the Receiving Party's possession.

Subject to the dispositions set forth above, and in consideration of the commercial relationship between the Parties, FuturMaster is expressly authorized by the Client to use the relationship established under the Agreement as a reference for its other clients and prospects and to use Client marks (trademarks, logos) in this regard.

17 Non-Solicitation

Each of the Parties agrees to not approach nor solicit any member of the other Party's personnel with whom it has been in contact with, with the intention to employ or have them work for it, whether directly or indirectly, without prior written authorization, even if the initial solicitation is made by the concerned employee.

This prohibition applies for the duration of this Agreement and for the period of two (2) years following its termination, for whatever reason whatsoever. In the case of a violation of this prohibition, the breaching Party shall be required to immediately remunerate the other Party, as liquidated damages, a fixed indemnity equal to 12 months of the last monthly gross salary of the solicited or hired person plus all the costs associated with recruiting a replacement.

18 Miscellaneous

18.1 Assignment

The Client may not assign its rights or obligations arising under the Agreement without prior written agreement from FuturMaster. Any unauthorized assignment of this Agreement shall be considered null and void.

FuturMaster may assign freely this Agreement to one of its Affiliates or to a third party.

The Client acknowledges and accepts that the Associated Services may be provided by an Affiliate or a FuturMaster partner entity, it being understood that FuturMaster shall remain responsible for performing its obligations according to the conditions set forth herein.x`

18.2 Waiver

The fact that one of the Parties does not enforce the application of any one of the Agreement dispositions or accepts its non-performance, whether permanently or temporarily, shall not be interpreted nor constitute a waiver of this Party's rights to enforce application of this or any other disposition of the Agreement.

18.3 Modifications - Entire Agreement

The Agreement may only be modified by amendment, duly validated and signed by an authorized person representing each Party.

This Agreement represents the entire agreement and obligations existing between the Parties regarding the provision of Services and/or Deliverables to the Client by FuturMaster. It replaces and voids all other communications, documents and/or oral or written agreements exchanged prior to the Parties executing this Agreement as well as all the Client's general product or services purchase conditions.

18.4 Severability

The voiding or inapplicability one of the Agreement stipulations shall not render the other stipulations void and which shall retain their enforceability and scope. As such, if one of the Agreement clauses is or becomes inapplicable or void, it shall be considered as not having existed and the Parties agree to use their best endeavors to replace any inapplicable or void clause by a new clause which would allow for the maintaining of the technical and the economic balance of the Agreement.

18.5 Notices

Any notification or communication which must be or can be sent by one of the Parties to the other Party in reference to this Agreement shall be hand delivered or sent by certified letter to the address of this Party as specified at the beginning of this Agreement or to any other address which may be provided in writing by this Party.

18.6 **Relationship**

FuturMaster and the Client acknowledge and agree that this Agreement shall not constitute, create or give effect to a joint venture, pooling arrangement, principal/agency relationship, partnership or formal business organization of any kind and neither FuturMaster nor the Client shall have the right to bind the other without the other's express prior written consent.

18.7 **Law and Jurisdiction**

The Agreement shall be governed and construed by Singapore law.

Any dispute arising out of the interpretation or performance of this Agreement shall be submitted to the directors or any other representatives of each of the Parties having the capacity and authority to negotiate and execute settlements and, if possible, to persons with a higher hierarchical level than those persons implicated in the daily management of the Agreement. Each Party agrees to meet quickly and no later than ten (10) days after receiving a certified letter with return receipt from the other Party.

The provisions of this article do not prohibit the Parties from submitting any dispute to the Courts hereunder, at any time, with the intention to preserve their rights linked to the subject of the dispute.

Each Party irrevocably agrees to submit to the exclusive jurisdiction of the Commercial Courts (*Tribunal de Commerce*) of Paris (France) over any claim or matter arising under or in connection with this Agreement.

IN WITNESS of which this Agreement has been duly executed by the Parties.

Signed for and on behalf of **FuturMaster**

FUTURMASTER SAS
38 cours de l'Ile Seguin-Immeuble Horizons
92100 BOULOGNE BILLANCOURT (France)
Tél : 01.46.08.05.45 - RCS 393 545 671

Name: **Yacine Zeroual**
Title: **CEO Group**

Signed for and on behalf of **Malayan Flour Mills Berhad**

MALAYAN FLOUR MILLS BERHAD
196101000210 (4260-M)
Suite 28.01, Level 28, Menara Citibank,
165 Jalan Ampang,
50450 Kuala Lumpur, Malaysia.
Tel: 03-2170 0999 Fax: 03-2170 0888

Name: **Wong Kok Wai**

Title: **Executive Director, Dindings Tyson**

Schedule 1 - Charges Time and Materials

FuturMaster agrees to perform the Services set forth in this Agreement, the Purchase Order, and the Statement of Work as set forth hereunder at the time, price, and form set forth in each Purchase Order and/or Statement of Work.

The Charges shall be paid to FuturMaster in accordance with Clause 5 at the rates set out below or as amended by FuturMaster from time to time and in accordance with the following payment profile:

Prices do not include travel and living expenses.

Schedule 2 – Change Request Procedure

Any requests by the Client to modify any provisions of the applicable Statement of Work or that are beyond the scope of such applicable Statement of Work or any requests by the Supplier for major changes to the applicable Statement of Work shall be documented in a separate, written, fully executed Change Request Form before the Supplier will begin additional Deliverables and/or Services or the changes concerned. Each Change Request Form shall be in the format as set out below or in the Statement of Work provided that the Parties may agree otherwise.

The Change Request Form shall be sent to the Project Manager of the other Party. The Parties shall without delay discuss the Change Request Form and the consequences of the changes requested on the delivery of the Services or applicable fees (if any).

Any change to the Deliverables and/or Services set forth in the applicable Statement of Work will be provided by the Supplier on the basis set forth in the Change Request Form and will be supplied on a time and materials basis at the Supplier's then current standard rates unless otherwise set forth in the Change Request Form or on the basis of the specific financial conditions as set out in the signed Change Request Form.

The Client shall, within five (5) Business Days of receipt of the Supplier's quotation or such other time as may be agreed by the Parties, advise the Supplier in writing of its decision either:

i. to accept the quotation in which case the Change Request Form shall be signed to reflect the Change; or

ii. to reject the quotation in which case the applicable Statement of Work shall continue in force unchanged.

Neither Party shall be obliged to consider or implement a request for a Change except in accordance with the procedure set out in this Section. Until such time (if at all) as a Change Request is accepted, the Supplier shall, unless otherwise agreed, continue to provide the Services in accordance with the applicable Statement of Work, notwithstanding the Change Request. For the avoidance of doubt, in the event a Change Request Form is signed, no other provisions of the Statement of Work will be amended except the ones expressly amended by such Change Request Form.

CHANGE REQUEST FORM example

Master Services Agreement Dated SOW No/Ref: Change Request No: Project Name/Ref:

This **Change Request** is issued in accordance with and is subject to the Master Services Agreement (the "Agreement") and Statement of Work referenced above, entered into between FuturMaster (the "Supplier") and **Malayan Flour Mills Berhad** (the "Client") executed on and sets out a variation of the ***SOW*** referred to above.

Change Request Title	[CHANGE REQUEST TITLE]
Initiator	[INITIATOR]
Date of request	[DATE OF REQUEST]
Expected date	
Expected version	

Reason for change	[REASON FOR THE CHANGE]
Details of change	[DETAILS OF THE REASON FOR CHANGE] / [INCLUDE ANY CHANGE TO SPECIFICATIONS] *[See Appendix 1 attached]*

Quotation *(if applicable)*	[AMENDMENTS TO FEES / COST OF CHANGE] *[See Appendix 1 attached]*
Payment Schedule *(if applicable)*	[PAYMENT SCHEDULE] *[See Appendix 1 attached]*
Implementation Plan	[TIMETABLE FOR THE IMPLEMENTATION] [INCLUDE ANY PROPOSALS FOR ACCEPTANCE OF THE CHANGE] *[See Appendix 1 attached]*

Impact of the Change on other aspects of the Statement of Work	[Should include, but is not limited to:] [THE TERM OF THE CONTRACT] / [THE PAYMENT PROFILE] / [THE DOCUMENTATION TO BE PROVIDED] [OTHER CONTRACTUAL ISSUES]
Expiry date of the validity of the Change Request	[DAY/MONTH/YEAR]

This **Change Request** sets out a variation or variations to the ***Statement of Work*** referenced above.

Signed for and on behalf of the Supplier:	**Signed for and on behalf of the Client:**
Signature:	Signature:
Name:	Name:
Title:	Title:
Date	Date